



United Kingdom: Lobbying and Foreign Agent Registration Laws

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United Kingdom: Lobbying and Foreign Agent Registration Laws

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SUMMARY The statutory regulation of lobbyists in the UK is a relatively recent occurrence. Prior to the enactment of legislation in 2014, registers and voluntary codes of conduct were relied upon to provide clarity during the political process. In 2014, the government introduced the Transparency of Lobbying, Non-party Campaigning and Trade Union Administration Act 2014 (2014 Act), which requires consultant lobbyists to provide their details to a publicly available register. The 2014 Act did not address the threat from state actors, but instead focused on increasing transparency for the activities of consultant lobbyists and the government did not consider it appropriate to amend the act to tackle the actions of these actors. Instead, it included a Foreign Influence Registration Scheme (FIRS) in the National Security Act 2023 (2023 Act) to counter activities that are arranged with foreign powers and that are considered to threaten the interests and security of the UK. The 2023 Act contains two tiers of registration: an enhanced tier with broad application to all activities directed from specified foreign powers and a political influence tier that covers activities that aim to influence politics in the UK directed by a foreign power.

There are restrictions in place on the appointments and employment of former ministers and senior level government officials in the UK. These range from a restriction on taking up a new appointment or employment within three months of leaving the position, to restrictions on lobbying, to conditions that may be attached to new appointments and employment. The rules are non-statutory and there are currently no enforcement mechanisms in place for cases of non-compliance.

I. Introduction

The National Security Act 2023 (2023 Act), enacted on July 11, 2023, introduced the Foreign Influence Registration Scheme (FIRS). FIRS is “designed to bring greater transparency to political influence in the UK, strengthen the integrity of UK politics and institutions and protect the UK from state threats.”¹ The FIRS provisions are not yet in force, and will not enter into force until the Secretary of State appoints a date.²

¹ *Policy Statement on Draft Regulations for the Foreign Influence Registration Scheme*, ¶ 1, <https://perma.cc/RR9N-HK4W>.

² National Security Act 2023, c. 32 § 100, <https://perma.cc/6AMZ-GSGH>. Example regulations that will provide the technical details of FIRS are the: National Security Act 2023 (Foreign Activities and Foreign Influence Registration Scheme: Information) Regulations 2023, Indicative Regulations - 27/ii/23 Provided for House of Lords Report Stage, National Security Bill (Session 2022/23), <https://perma.cc/U6A2-MHET>.

The government determined it was necessary to introduce FIRS as the Transparency of Lobbying, Non-party Campaigning and Trade Union Administration Act 2014 (2014 Act)³ did not address the threat from state actors, but instead had the specific focus of “increasing transparency around the activities of consultant lobbyists.”⁴ FIRS is broader in scope than the provisions of the 2014 Act and “is designed as a tool to counter state threats activity by focusing on arrangements with foreign powers. While there may be some limited overlap, the scope of FIRS is necessarily much wider, and the offences and penalties reflect the seriousness of the threat context.”⁵ FIRS does not just apply during election periods; instead “the requirement to register political influence activities is designed to capture and increase transparency around a wider range of conduct that has been directed by foreign powers.”⁶ It also does not restrict the arrangements covered under the 2023 Act from occurring, it simply requires that they be registered to provide transparency.

II. Foreign Influence Registration Scheme (FIRS)

FIRS is based on the United States’ Foreign Agents Registration Act (FARA) and Australia’s Foreign Influence Transparency Scheme (FITS)⁷ and provides registration requirements for two tiers: political influencers and an enhanced tier that targets those directed to conduct activities in the UK by a foreign power or entity.⁸ The political tier provides that it is unlawful for anyone to undertake political influence activity at the direction of a foreign power without being registered and “aims to increase transparency of foreign power influence in UK political affairs.”⁹ The enhanced tier provides that it is an offense to enter into arrangements with a specified foreign power, or entity controlled by a foreign power without registering the arrangement. The government intends that “FIRS will play a critical role in encouraging that openness and transparency, while simultaneously deterring foreign powers that wish to pursue their aims covertly.”¹⁰ Specifically, FIRS aims to

[s]trengthen[] the resilience of the UK political system against covert foreign influence and provides greater assurance around the activities of certain foreign powers or entities that are a national security risk. As a result, the UK will be better informed about the nature, scale and extent of foreign influence in UK.¹¹

³ Transparency of Lobbying, Non-party Campaigning and Trade Union Administration Act 2014 (2014 Act), c. 4, <https://perma.cc/4KE2-5ZQU>.

⁴ *Explanatory Notes*, National Security Act 2023, c. 32, ¶ 57, <https://perma.cc/535P-233N>.

⁵ *Id.* ¶ 57.

⁶ *Id.* ¶ 58.

⁷ Home Office, *Impact Assessment: Foreign Influence Registration Scheme (FIRS)*, July 6, 2023, ¶ 13, <https://perma.cc/RJ4Q-5PZQ>.

⁸ *Id.* See also *National Security Bill Becomes Law*, Home Office and the Rt. Hon. Tom Tugendhat MBE VR MP (July 11, 2023), <https://perma.cc/7T5Z-DNKH>.

⁹ *Open Consultation Draft Guidance on the Foreign Influence Registration Scheme (accessible)*, Gov.uk, (last updated Sept. 19, 2023), ¶ 9, <https://perma.cc/55QF-UE75>.

¹⁰ Home Office, *Impact Assessment: Foreign Influence Registration Scheme (FIRS)*, *supra* note 7, ¶ 13.

¹¹ *Policy Paper: Foreign Influence Registration Scheme Factsheet* (last updated July 13, 2023), Gov.uk, <https://perma.cc/7CQL-H5WY>.

A. Enhanced Tier

Sections 65 through 68 of the National Security Act 2023 set out the provisions of the “enhanced tier” of FIRS, which provides the Secretary of State with the ability to require registration of a “foreign activity arrangement” where it is reasonably necessary to protect the safety or interests of the UK.¹² This covers a broad range of activities for specific foreign powers, parts of foreign powers, or foreign government-controlled entities. When an individual subject to the provisions of the 2023 Act makes a foreign activity arrangement, this must be registered with the Secretary of State within 10 days of the arrangement being made. The registration must be made whether or not the activity occurs, as it is the fact that it has been arranged that triggers the provisions of the 2023 Act.

Foreign activity arrangements occur where a specified person directs another person to carry out, or arrange for, “relevant activities” to be carried out in the UK. A relevant activity is any activity, unless the Secretary of State specifies otherwise in regulations,¹³ and covers actions such as communications to engage in relevant activities sent to the UK from a person located overseas.¹⁴ The aim behind such a broad application of the 2023 Act is to “enable greater assurance about the full range of activities carried out for, or at the direction of, specified persons.”¹⁵

The term “direct” is not defined in the 2023 Act, “but is considered to be an order or instruction to act. It implies a degree of control or expectation by the foreign power upon you.”¹⁶ Draft guidance notes that a foreign power may be giving a direction if any of the following circumstances apply:

- the foreign power has power or authority over you;
- there is an element of control or expectation to the request;
- a benefit is to be offered as a result of you conforming with the request; or
- there is coercion or a threat alongside the request.¹⁷

Specified persons are defined in the Act as either a foreign power that has been specified by the Secretary of State in regulations or, where it is reasonably necessary to protect the interests or security of the UK, a person, who is not a foreign power or individual, who the Secretary of State reasonably believes is controlled by a foreign power and has been specified in regulations.¹⁸ Individuals regardless of nationality, as well as legal entities, wherever they are registered, are covered by the provisions of the 2023 Act.¹⁹

¹² Id.

¹³ National Security Act 2023, § 65.

¹⁴ *Explanatory Notes*, National Security Act 2023, supra note 4, ¶ 438.

¹⁵ Id. ¶ 441.

¹⁶ *Open Consultation Draft Guidance on the Foreign Influence Registration Scheme (accessible)*, supra note 9, ¶ 22.

¹⁷ Id. ¶ 23. See also *Policy Paper: Foreign Influence Registration Scheme Factsheet*, supra note 11.

¹⁸ National Security Act 2023, § 66.

¹⁹ *Explanatory Notes*, National Security Act 2023, supra note 4, ¶ 444.

Schedule 13 of the Act sets out five conditions under which a person may be determined to be controlled by a foreign power:

- (2) Condition 1 is that the foreign power has the right to direct or control, or actually directs or controls, the person's activities (in whole or in part).
- (3) Condition 2 is that the foreign power holds, directly or indirectly, more than 25% of the shares in the person.
- (4) Condition 3 is that the foreign power holds, directly or indirectly, more than 25% of the voting rights in the person.
- (5) Condition 4 is that the foreign power holds the right, directly or indirectly, to appoint or remove an officer of the person.
- (6) Condition 5 is that –
 - (a) the trustees of a trust, or the members of a partnership, unincorporated association or other entity, that is not a legal person under the law by which it is governed meet one or more of conditions 1 to 4 (in their capacity as such) in relation to the person, and
 - (b) the foreign power has the right to direct or control, or actually directs or controls, the activities of that trust or entity (in whole or in part).²⁰

The *Policy Statement on Draft Regulations for the Foreign Influence Registration Scheme* notes that the use of the power in the 2023 Act to apply this regime to specific foreign powers and entities controlled by foreign powers will be determined on a case-by-case basis after the Secretary of State receives advice and assessments.²¹ Regulations made under these provisions are subject to the affirmative procedure in Parliament, meaning each House of Parliament must approve it.²²

The term foreign power is defined in section 32 of the 2023 Act as

- (a) the sovereign or other head of a foreign State in their public capacity,
- (b) a foreign government, or part of a foreign government,
- (c) an agency or authority of a foreign government, or of part of a foreign government,
- (d) an authority responsible for administering the affairs of an area within a foreign country or territory, or persons exercising the functions of such an authority, or
- (e) a political party which is a governing political party of a foreign government.
- (2) A political party is a governing political party of a foreign government if persons holding political or official posts in the foreign government or part of the foreign government –
 - (a) hold those posts as a result of, or in the course of, their membership of the party, or
 - (b) in exercising the functions of those posts, are subject to the direction or control of, or significantly influenced by, the party.

The government has provided an example registration form that shows the information that will be requested. This includes information about the registrant, including their name; contact

²⁰ National Security Act 2023, sch. 13.

²¹ *Policy Statement on Draft Regulations for the Foreign Influence Registration Scheme*, supra note 1, ¶¶ 9-10.

²² Id. See also *Affirmative Procedure*, Gov.uk, <https://perma.cc/ZA39-3U4P>.

details; date of birth; nationality; and passport number. Other information that must be provided includes:

- the name of the entity that is directing them to arrange or carry out activities in the UK;
- a description of the form and nature of the arrangement;
- the date the registrant entered into the arrangement;
- a description of registrable activities the individual is doing under the arrangement;
- the purposes and desired outcome of the activities;
- whether the registrant will be carrying out the activities or whether they will arrange for other individuals to do so; and
- the start, end date and frequency of the activity.²³

B. Political Influence Tier

Sections 69 through 72 of the 2023 Act set out the registration requirements for foreign influence arrangements to carry out, or arrange for the carrying out of, political influence activities in the UK at the direction of any foreign power. Activities conducted entirely overseas, such as meetings with government ministers overseas, do not fall within the scope of the legislation.²⁴ The terms direct and foreign power have the same meaning as in the enhanced tier.

Political influence activity extends beyond lobbying activities to include communications to a list of public officials;²⁵ public communications, unless it is clear the communication is from a foreign power; and disbursing money, goods, or services to a UK person for the purposes of influencing UK public life, such as elections, referendums, and decisions of the government or the legislature.²⁶ The intention of the activity must be to influence an election or political referendum; the decisions of UK government ministers, or ministers of the devolved administrations; the proceedings of a political party registered in the UK; or any member of a political party registered in the UK, or a member of Parliament or the devolved administrations.²⁷ It is the arrangement itself that must be registered, rather than each individual activity.

The government has provided an example of the information required for registration in the political influence tier. This includes the name, personal and contact details of the registrant, their nationality, and passport number. Other information that it is anticipated the registrant must provide include

²³ *Policy Statement on Draft Regulations for the Foreign Influence Registration Scheme*, supra note 1, Annex A.

²⁴ *Open Consultation Draft Guidance on the Foreign Influence Registration Scheme (accessible)*, supra note 9, ¶ 34.

²⁵ These individuals are listed in schedule 14 of the National Security Act 2023.

²⁶ National Security Act 2023, § 70.

²⁷ Id. § 70.

- the foreign power the registrant is acting on behalf of;
- a description of the form and nature of the arrangement;
- the date the registrant was directed by the foreign power to act;
- whether the category of activity is communications; public communications; or disbursement;
- names and roles of who the registrant will make a communication to;
- the type of communication, such as via email, in person or a combination;
- the purpose and desired outcome of the communication;
- whether the person will act themselves or have someone else conduct the activities on their behalf and the names of these individuals if appropriate;
- whether the activities have already occurred;
- the start and end date of the activities;
- the anticipated frequency of the activities.²⁸

C. Registration Requirements

The registration must occur within 28 days of the arrangements being made, and there is a three-month window to register arrangements that exists on the date the Act enters into force.²⁹ The public register will display the name of the person; the foreign power directing the registrant; and the details of the arrangement and activities to be carried out.³⁰ There are exceptions to publications that arise where the registrant states on the application that they believe publishing the information provided will either prejudice the national security of the UK; put an individual's safety at risk; or involve the disclosure of commercially sensitive information.³¹ If the unit processing the registration determines that these criteria are met, the sensitive information will not be included on the public register.³² The Secretary of State must be notified of any material changes in circumstances to the arrangements or activities that have been registered under both tiers within 14 days of the change occurring.³³

The government has emphasized that FIRS only applies to those in arrangements directed by a foreign power and not foreign powers themselves and that it “continues to welcome open and transparent engagement with and on behalf of foreign governments. This scheme will play a critical role in encouraging transparency, while simultaneously deterring foreign powers that wish to pursue their aims covertly.”³⁴

²⁸ *Policy Statement on Draft Regulations for the Foreign Influence Registration Scheme*, supra note 1, Annex B.

²⁹ *Open Consultation Draft Guidance on the Foreign Influence Registration Scheme (accessible)*, supra note 9, ¶ 17.

³⁰ *Policy Statement on Draft Regulations for the Foreign Influence Registration Scheme*, supra note 1, Annex B.

³¹ *Id.* Annex B.

³² *Id.*

³³ National Security Act 2023, § 74(5).

³⁴ *Policy Paper: Foreign Influence Registration Scheme Factsheet*, supra note 11.

D. Exemptions

The 2023 Act contains a number of exemptions from registration, and the Secretary of State may add to these through regulations. The following are the current exemptions:

- Any arrangement with the Republic of Ireland;
- Any person acting pursuant to an arrangement that the UK is a party to, for example any person invited to an event by a government department in the UK, are exempt from registration under both tiers;
- Foreign powers, along with their employees and office holders acting in their official capacity;
- Individuals who are subject to privileges and immunities in international law, such as under the Vienna Convention on Diplomatic and Consular Relations, along with their family members of diplomatic and consular staff are exempt from registration under both tiers;
- Individuals providing essential services to a diplomatic mission or consulates are exempt from registration under the enhanced tier;
- Lawyers providing legal services are exempt from registration under both tiers; and
- Recognized domestic and international news publishers are exempt from registration under the political influence tier.³⁵

E. Enforcement and Offenses

A unit within the Home Office is responsible for administering FIRS and has the power to issue notices requiring information from registrants or individuals believed are a party to, or acting pursuant to, a registerable arrangement.³⁶ It is an offense to fail to respond to an information notice. The information requested could include evidence of the arrangements, such as any correspondence or a contract, information about the parties to the arrangement, and more information about the activities to be carried out.³⁷ Failing to comply with an information notice is punishable with up to five years imprisonment and/or a fine for those under the enhanced tier and up to two years imprisonment and/or a fine for those under the political tier.³⁸

It is an offense to make a foreign activity arrangement and fail to register such an arrangement, provided the individual knew, or ought to reasonably have known, that the arrangement would be a foreign activity arrangement.³⁹ This is punishable with up to five years imprisonment and/or a fine.⁴⁰ It is a defense that the person reasonably believed the arrangement was registered and

³⁵ National Security Act 2023 Act, sch. 15. See also *Open Consultation Draft Guidance on the Foreign Influence Registration Scheme* (accessible), supra note 9, ¶¶ 94-112.

³⁶ National Security Act 2023, § 75. See also *Open Consultation Draft Guidance on the Foreign Influence Registration Scheme* (accessible), supra note 9, ¶¶ 9 & 83.

³⁷ *Open Consultation Draft Guidance on the Foreign Influence Registration Scheme* (accessible), supra note 9, ¶ 90.

³⁸ National Security Act 2023, § 80. See also id. ¶ 93.

³⁹ National Security Act 2023, §§ 65(5), 67 & 80.

⁴⁰ Id. §§ 65 & 80.

took all steps that were reasonably practicable to determine if the arrangement was registered. It is also an offense to carry out activities, or arrange for others to carry out activities, pursuant to a foreign activity arrangement that has not been registered.⁴¹ It is an offense to carry out a political influence activity without registering the arrangement and this is punishable with up to two years imprisonment.⁴² Failing to update the register within 14 days of a material change in the arrangement is an offense, as well as providing false, inaccurate or misleading information and failing to comply with an information notice.⁴³

In addition to FIRS, the Act also introduces the offense of foreign interference,⁴⁴ and makes it “illegal to engage in conduct that interferes with fundamental rights, such as voting and freedom of speech, that are essential to the UK’s democracy.”⁴⁵ The aim of these offenses is to

create a more challenging operating environment for, and to deter and disrupt the activities of, foreign states who seek to undermine UK interests, our institutions, political system, or our rights, and ultimately prejudice our national security.⁴⁶

III. Transparency of Lobbying, Non-party Campaigning and Trade Union Administration Act 2014

The statutory regulation of lobbyists in the UK is a relatively recent occurrence. Prior to the enactment of legislation in 2014, registers and voluntary codes of conduct were relied upon to provide clarity during the political process.⁴⁷ The Transparency of Lobbying, Non-party Campaigning and Trade Union Administration Act was enacted in 2014, and requires consultant lobbyists to provide their details to a publicly available register. These provisions were introduced in order to “ensure that it is clear whose interests are being represented by consultant lobbyists who make representations to the Government.”⁴⁸ The Act was enacted on January 30, 2014, and the different parts of the Act received commencement orders on later dates. The requirement to register as a consultant lobbyist entered into force on May 23, 2014,⁴⁹ and the remaining provisions entered into force on April 1, 2015.⁵⁰

⁴¹ Id.

⁴² Id. §§ 69 & 80.

⁴³ Id. §§ 74-75 & 77.

⁴⁴ Id. §§ 13-16.

⁴⁵ *National Security Bill Becomes Law*, *supra* note 8.

⁴⁶ *National Security Act Factsheet*, Home Office (July 11, 2023), <https://perma.cc/YT5U-MNN2>.

⁴⁷ Robert Rogers & Rhodri Walters, *How Parliament Works* 104 (7th ed. 2015).

⁴⁸ Transparency of Lobbying Act 2014, *Explanatory Notes* ¶ 4, <https://perma.cc/QB6X-WE6N>.

⁴⁹ Transparency of Lobbying, Non-Party Campaigning and Trade Union Administration Act 2014 (Commencement and Transitional Provision No. 1) Order 2014, SI 2014/1236, <https://perma.cc/R7JM-7AV2>.

⁵⁰ Transparency of Lobbying, Non-Party Campaigning and Trade Union Administration Act 2014 (Commencement and Transitional Provision No. 3) Order 2015, SI 2015/954, <https://perma.cc/SU2A-6SHL>.

Part 1 of the 2014 Act requires “consultant lobbyists” to provide information to a publicly available register of consultant lobbyists. The register is hosted and supervised by the Registrar of Consultant Lobbyists,⁵¹ who is required by the Act to be independent of both the lobbying industry and the government.⁵² Under section 2(1) of the 2014 Act, a person is deemed to be carrying on the business of consultant lobbying if

- (a) in the course of a business and in return for payment, the person makes communications within subsection (3) [of section 2] on behalf of another person or persons,
- (b) the person is registered under the Value Added Tax Act 1994, and
- (c) none of the exceptions in Part 1 of Schedule 1 applies.

The requirement that the person be registered under the Value Added Tax Act means that individuals who make less than the VAT threshold, which is currently £83,000 (about US\$101,800),⁵³ do not need to register as consultant lobbyists.⁵⁴

Information that a consultant lobbyist must provide to the register includes

- his/her company name and the address of the company’s registered office;
- the VAT registration number;
- the names of the company’s directors, any secretary and shadow directors, or partners where applicable;
- his/her name and the address of his/her main place of business, or other contact address; and
- the name(s) of his/her clients.⁵⁵

The register must also include whether the consultant lobbyist subscribes to a code of conduct that is publicly available and, if so, the location of the code. The details on the register must be updated on a quarterly basis.⁵⁶

Operating as a consultant lobbyist without registering is a criminal offense punishable with a fine,⁵⁷ although the Registrar may opt to pursue civil proceedings and implement a fine of up to £7,500 (about US\$9,200).⁵⁸ The government notes that the register “will complement the existing

⁵¹ *Office of the Registrar of Consultant Lobbyists*, <https://perma.cc/F4NT-ZVSU>

⁵² *Transparency of Lobbying Act 2014, Explanatory Notes*, supra note 48, ¶ 3.

⁵³ *How VAT Works*, Gov.uk, <https://perma.cc/U6XM-9K9Q>.

⁵⁴ House of Commons Library, *The Register of Consultant Lobbyists*, Briefing Paper No. 07175, Jan. 22, 2016, <https://perma.cc/H2DC-7RS3>.

⁵⁵ *Transparency of Lobbying Act 2014*, § 4.

⁵⁶ *Id.* § 5.

⁵⁷ *Id.* § 12.

⁵⁸ *Id.* §§ 13–16.

transparency regime, whereby Government ministers and permanent secretaries of Government departments proactively disclose information about who they meet on a quarterly basis.”⁵⁹

IV. Post Government Employment for Government Officials

Post government employment restrictions exist for government ministers and civil servants and are based on non-statutory rules. There are no mechanisms for enforcing the rules, other than noting that the individual is in non-compliance with the rules, and there are limited investigatory powers available to determine if an individual has complied.⁶⁰

A. Ministers

The Ministerial Code, which sets out the standards of conduct expected of ministers,⁶¹ provides that once ministers leave office they may not lobby the government for two years. This means they

should not engage in communication with Government (Ministers, civil servants, including special advisers, and other relevant officials/public office holders) – wherever it takes place – with a view to influencing a Government decision, policy or contract award/grant in relation to their own interests or the interests of the organisation by which they are employed, or to whom they are contracted or with which they hold office. This does not prohibit contacts, including at a social or party political level which is unrelated to such lobbying.⁶²

The Independent Advisory Committee on Business Appointments (ACOBA) may waive the two year period if it is justified by the circumstances.⁶³

Former ministers must wait a minimum of three months after leaving office before taking an appointment or employment. They must also obtain advice from the ACOBA about any employment that occurs within two years of them leaving office and must not announce or take up a new appointment without this advice.⁶⁴ ACOBA considers each job offered to a minister within two years of leaving office on a case by case basis to “ensure that it does not raise suspicion that the minister has been offered the job because of their decisions during their time in government, or that their new employer could make ‘improper use’ of information that a minister has from their time in government.”⁶⁵ ACOBA must balance the following points “against the

⁵⁹ Id. See also Transparency of Lobbying Act 2014, *Explanatory Notes*, supra note 48, ¶ 3.

⁶⁰ *Jobs After Government: Rules for Ex-ministers and Civil Servants*, Institute for Government (Mar. 31, 2021), <https://perma.cc/B4YZ-52S4>.

⁶¹ *Guidance: Ministerial Code*, Gov.uk, <https://perma.cc/E2BZ-GH2N>.

⁶² Cabinet Office, *Ministerial Code* (Dec. 2022), Annex B: Business Appointment Rules for Ministers, ¶ 8, <https://perma.cc/F9MW-H9TG>.

⁶³ Id. ¶ 8.

⁶⁴ Id. ¶ 7.25.

⁶⁵ *Jobs After Government: Rules for Ex-ministers and Civil Servants*, supra note 60.

desirability of former Minister being able to move into business or other areas of public life, and the need for them to be able to start a new career or resume a former one”⁶⁶:

- I. to what extent, if at all, has the former Minister been in a position which could lay him or her open to the suggestion that the appointment was in some way a reward for past favours?
- II. has the former Minister been in a position where he or she has had access to trade secrets of competitors, knowledge of unannounced Government policy or other sensitive information which could give his or her new employer an unfair or improper advantage?
- III. is there another specific reason why acceptance of the appointment or employment could give rise to public concern on propriety grounds directly related to his or her former Ministerial role?⁶⁷

Advice from ACOBA may state that there are no reasons that an appointment or employment should not be taken up, impose conditions on the appointment, such as that the former minister should not be involved in certain areas of business, or activities that were related to their former department. The advice may be that the appointment or employment be delayed or that it is unsuitable altogether.⁶⁸ Ministers are required to abide by the advice provided by the committee, and this advice is published when the new role is announced or taken up.⁶⁹

The intent of these rules is expressed in the Ministerial Code, Business Appointment Rules in Annex B,

[i]t is in the public interest that former Ministers with experience in Government should be able to move into business or into other areas of public life, and to be able to start a new career or resume a former one. It is equally important that when a former Minister takes up a particular appointment or employment, there should be no cause for any suspicion of impropriety.⁷⁰

The rules aim to counter suspicion that

- a) the decisions and statements of a serving Minister might be influenced by the hope or expectation of future employment with a particular firm or organisation; or
- b) an employer could make improper use of official information to which a former Minister has had access; or
- c) there may be cause for concern about the appointment in some other particular respect.⁷¹

⁶⁶ Cabinet Office, *Ministerial Code*, supra note 62, Annex B: Business Appointment Rules for Ministers, ¶ 6.

⁶⁷ Id. ¶ 5.

⁶⁸ Id. ¶ 7.

⁶⁹ Id. ¶ 7.25; Annex B: Business Appointment Rules for Ministers, ¶ 13.

⁷⁰ Annex B: Business Appointment Rules for Ministers.

⁷¹ Id.

B. Civil Servants

Civil servants, who are individuals employed by the Crown, also face similar restrictions to former government ministers that are based on the grade⁷² (i.e., how senior they are) of employment.⁷³ For civil servants at SCS1 level or above, the rules apply for two years after the individual leaves the civil service and for those below this grade, the rules apply for one year after the individual leaves.

For post government employment, the need to apply to ACOBA prior to taking up a new appointment or employment is dependent upon the level the civil servant was at, as follows:

- Permanent secretaries and civil servants at SCS3 level must wait three months prior to taking up a new appointment or employment and then must apply to ACOBA and are prohibited from lobbying the government in their new positions for two years. ACOBA has the discretion to reduce or modify both these time frames;
- Civil servants at SCS2 and SCS1 have the rules apply to them for two years, one year for those below SCS1 or below, after they leave their job and are only required to apply to their former government department if one of the following criteria are met:
 1. They have been involved in developing policy affecting their prospective employer, or have had access to unannounced Government policy or other privileged information affecting their prospective employer, at any time in their last two years in the Civil Service.
 2. They have been responsible for regulatory or any other decisions affecting their prospective employer, at any time in their last two years in the Civil Service.
 3. They have had any official dealings with their prospective employer at any time in their last two years in the Civil Service.
 4. They have had official dealings of a continued or repeated nature with their prospective employer at any time during their Civil Service career.
 5. They have had access to commercially sensitive information of competitors of their prospective employer in the course of their official duties.
 6. The proposed appointment or employment would involve making representations to, or lobbying the Government on behalf of a new employer.
 7. The proposed appointment or employment is consultancy work, either self-employed or as a member of a firm, and they have had official dealings with outside bodies or organisations in their last two years in the Civil Service that are involved in their proposed area of consultancy work.⁷⁴

The former department of the individual may either approve the appointment or employment unconditionally, or approve it subject to conditions that expire two years after the individual's last day of paid government employment. Conditions can include a waiting period, prohibitions on lobbying government, or a requirement that they do not engage in specific activities that

⁷² *Grade Structures of the Civil Service*, Institute for Government, <https://perma.cc/ZJB3-6SNG>.

⁷³ *Guidance: Business Appointment Rules for Crown Servants*, Cabinet Office (Dec. 21, 2016), <https://perma.cc/7JNF-JQN2>. There are similar rules in place for civil servants working in the Welsh and Scottish governments. *Jobs After Government: Rules for Ex-ministers and Civil Servants*, *supra* note 60.

⁷⁴ *Guidance: Business Appointment Rules for Crown Servants*, *supra* note 73.

involve their former department.⁷⁵ In cases where a waiting period is required, in some circumstances payment “would be subject to the particular circumstances of the individual case, and it would be important to ensure that decisions take account of all relevant factors”⁷⁶ and during this time the government should consider if the individual should be redeployed until the waiting period is over. The Cabinet Office must be consulted where any payment is proposed.

⁷⁵ Id.

⁷⁶ Id.